

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Colin Gardner	Team: Squad #4	CCRB Case #: 201604568	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/13/2016 7:30 PM	Location of Incident: 40th Precinct Stationhouse	Precinct: 40	18 Mo. SOL 11/13/2017	EO SOL 11/13/2017	
Date/Time CV Reported Tue, 05/17/2016 2:29 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/26/2016 10:41 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. CPT Thomas Alps	00000	926498	040 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.CPT Thomas Alps	Discourtesy: Captain Thomas Alps spoke discourteously to § 87(2)(b)				

Case Summary

On May 13, 2016, at approximately 7:30 p.m., § 87(2)(b) was at the 40th Precinct stationhouse with her husband, § 87(2)(b) and § 87(2)(b) went to the 40th Precinct stationhouse to file a criminal complaint against § 87(2)(b), whom § 87(2)(b) was in a physical altercation with, and § 87(2)(b) threatened § 87(2)(b) and § 87(2)(b) § 87(2)(b) year old daughter during that altercation. § 87(2)(b) was speaking to Captain Thomas Alps from the 40th Precinct and Captain Alps allegedly told her, "I don't have time for this, this is bullshit, and I'm not scared to lock nobody up." (**Allegation A**). § 87(2)(b) was arrested regarding this incident, and § 87(2)(b) was not arrested and was not issued any summonses (**see Board Review 5**).

Video Footage

Video footage was obtained for this incident from IAB, and that footage was provided to them by § 87(2)(b). The video footage shows Captain Alps speaking to a male individual and is being recording by another person on the side. The male individual that Captain Alps is speaking with has been identified via the investigation as § 87(2)(b) and the person recording the incident has been identified via the investigation as § 87(2)(b). Captain Alps is heard saying, "It's ours, then we get involved. And if he wants to file a complaint against you, we got no problem with locking you up. It's not like we're afraid of locking people up, ok? That's what we do. But this is non-sense, we got problems here. Fair?" Captain Alps then walks away and § 87(2)(b) followed him (**see Board Review 7**).

Mediation, Civil and Criminal Histories

- An opportunity to discuss mediation did not take place since § 87(2)(b) failed to provide a verified statement.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- § 87(2)(b) did not file a Notice of Claim regarding this incident (**see Board Review 4**).

Civilian and Officer CCRB Histories

- § 87(2)(b) was previously the complainant / victim in two other CCRB cases. § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- Captain Thomas Alps has been a member of the service for 15 years and there have been 9 prior allegations in 7 CCRB complaints made against him. None of the cases were substantiated § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- **Abuse** : As per the video, Captain Alps informed § 87(2)§ 87(2)(b) that he would be arrested and § 87(2)(b) was ultimately arrested for assault with intent to cause physical injury.

Allegation A – Discourtesy: Captain Thomas Alps spoke discourteously to § 87(2)(b)

§ 87(2)(b) was uncooperative with providing a verified statement regarding this incident (see **Board Review 6**).

§ 87(2)(b) stated that she and § 87(2)(b) went to the 40th Precinct stationhouse and they spoke with Captain Alps about a situation involving a man in a wheelchair that was threatening their daughter. The man in the wheelchair was identified via the investigation as § 87(2)(b). § 87(2)(b) was also at the stationhouse to explain his cross-complaint to the officers. § 87(2)(b) and § 87(2)(b) were involved in a physical altercation prior to their arrival to the stationhouse. § 87(2)(b) wanted Captain Alps to add other charges against § 87(2)(b) in addition to the assault charge for getting into the physical altercation with § 87(2)(b). Captain then told § 87(2)(b) "I don't have time for this, this is bullshit, and I'm not scared to lock nobody up" (see **Board Review 1**).

During § 87(2)(b) phone statement, § 87(2)(b) also provided a brief statement about the incident. § 87(2)(b) stated that Captain Alps told him that he was going to have to "lock up" both § 87(2)(b) and § 87(2)(b) regarding the incident they were both complaining about. Captain Alps also told § 87(2)(b) "This is bullshit," in regards to the situation with the man in the wheelchair and § 87(2)(b) daughter.

The video provided by § 87(2)(b) which depicted the interaction that captured Captain Alps speaking with § 87(2)(b) and explaining that both individuals would get arrested for the cross-complaints, at no time did Captain Alps use the word, "Bullshit." In fact, he tells them, "But this is non-sense, we got real problems here." § 87(2)(b) and § 87(2)(b) may have interpreted that statement by Captain Alps as him saying, "This is bullshit."



201604568_20160602_0938_DM.mp4

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date